



A COMMUNITY OF CHOICE

OFFICE OF THE CITY ENGINEER

2101 O'Neil Avenue Room 206

Cheyenne, Wyoming 82001

Phone (307)637-6268 Fax (307)637-6256

MEMORANDUM

DATE: April 16, 2022
TO: Honorable Mayor Patrick J. Collins
Members of the City Council

FROM: Thomas D. Cobb, PE, City Engineer

SUBJECT: A RESOLUTION ACCEPTING A U.S. DEPARTMENT OF HOMELAND SECURITY
FEDERAL EMERGENCY MANAGEMENT AGENCY FISCAL YEAR 2020 BUILDING
RESILIENT INFRASTRUCTURE AND COMMUNITIES GRANT, IN THE AMOUNT OF
\$150,000, FOR DRY CREEK RAIL CROSSING PLANNING AND DESIGN WORK

Please find the attached Resolution for acceptance of a \$150,000 Grant Award from Homeland Security initiated by the City Engineering Department.

Background:

The Cheyenne Metropolitan Planning Organization (MPO) recently conducted a plan of East Park which identified needed improvements to the drainage conveyance of the Dry Creek basin thru the Union Pacific Railroad embankment in the vicinity of milepost 504.75, Sidney Sub.

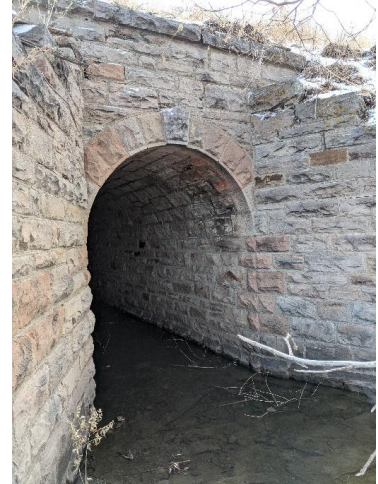


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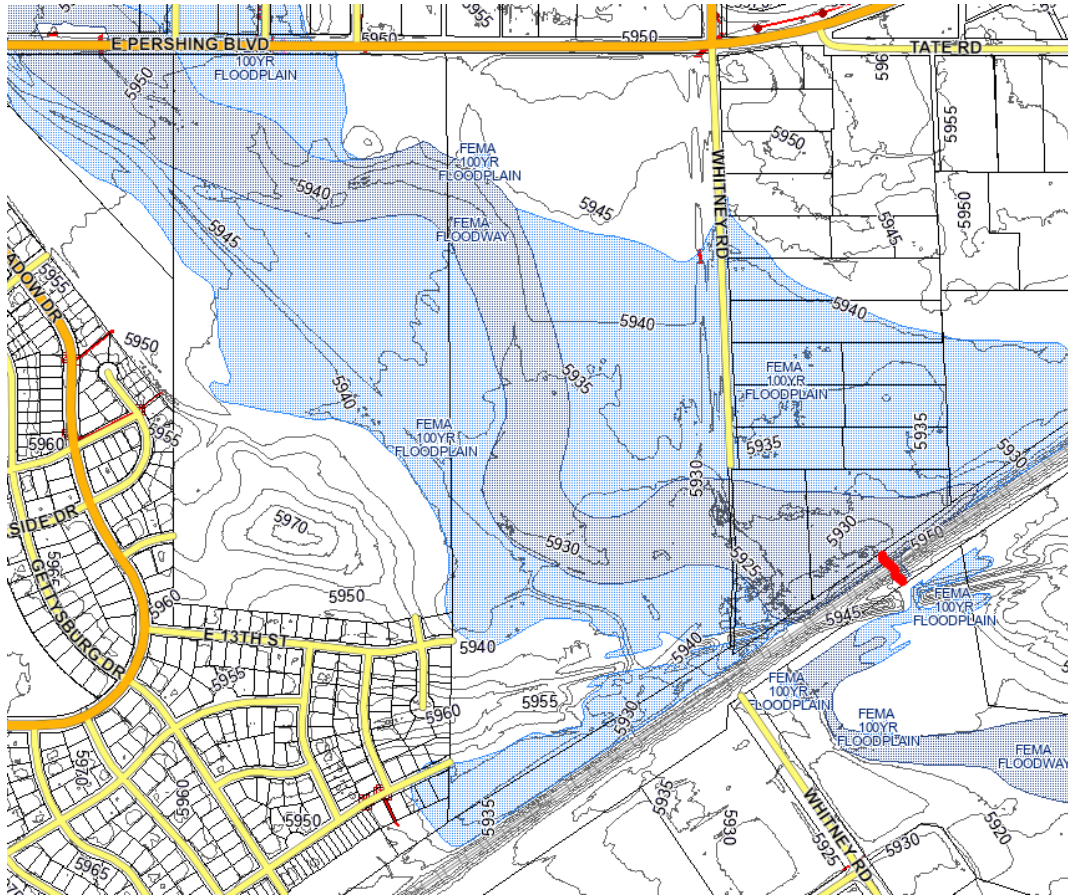
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Currently drainage flows thru the UPRR embankment via a historic 6' wide x 8' tall box arch masonry structure built by the UPRR in 1903.

The Dry Creek drainage basin contributing flow upstream of the UPRR culvert is approximately 11 square miles in size. The existing conditions are such that during a large storm event, stormwater is held up against the UPRR Embankment until it can flow thru the masonry structure. The existing railroad embankment is approximately 25' tall in the vicinity of this arch structure. The image below indicates the FEMA 100-Year Floodplain and Floodway in the vicinity of this arch structure (the red line in the image.)



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1. Construct an engineered berm north of the existing UPRR embankment. This additional berm will protect the existing railroad embankment by removing storm and flood waters and eliminating pooling and erosion of the existing railroad embankment.
2. Install 3 – 60” borings thru the existing UPRR embankment and the constructed engineered berm referenced in Item No. 1 above, following all AREMA Guidelines. These three pipes will convey the storm water from East Park thru the embankment to continue flowing in Dry Creek south of the embankment.
3. Install 1 – 54” boring thru the existing UPRR embankment near the existing arch structure also following all AREMA Guidelines. This 54” boring will convey storm water that is currently flowing along the UPRR embankment from the west and east, directing it to the south into Dry Creek on the south side of the UPRR embankment.

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Reason for Grant:

Over the last 120-years, the Dry Creek basin has experienced 100-year or larger flood events at least seven times. Four of those resulted in significant impounding of water against the UPRR embankment referenced in this letter. There have been at least four occasions where as much as 19-feet of stormwater has been impounded against the UPRR embankment since the 6' x 8' box arch culvert was constructed in 1903. During the last major event in 1985, the 6' x 8' box arch culvert was partially blocked with flood debris. On average, our community experiences a large magnitude event in the Dry Creek drainage basin about every twenty years. It is not a matter of if but when the next big flood event will occur in the basin. We have not experienced that level of storm in some time.

Clearly the recommended improvements provide protection of UPRR facilities and removes the primary Dry Creek Basin storm water from utilizing the historic box arch structure. We believe these recommendations provide direct benefit to the UPRR and an opportunity for the City of Cheyenne to potentially use the historic box arch structure as a pedestrian underpass for the Cheyenne Greenway system.

Cost and Funding:

The total cost of project to the City of Cheyenne shall not exceed \$50,000. The funding for the project is the 2019-2022 5th Penny 1% Sales Tax dedicated Drainage Fund.

APPROVED

By Stefanie Boster at 10:36 pm, Apr 19, 2022

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION ACCEPTING A U.S. DEPARTMENT OF HOMELAND SECURITY FEDERAL EMERGENCY MANAGEMENT AGENCY FISCAL YEAR 2020 BUILDING RESILIENT INFRASTRUCTURE AND COMMUNITIES GRANT.”

WHEREAS, the City of Cheyenne applied for and has been awarded a grant of \$150,000 from the Wyoming Homeland Security Office for project scoping design work for the Cheyenne Dry Creek Union Pacific Railroad Crossing; and

WHEREAS, the required match of \$50,000 will be provided through 2019 to 2022 5th Penny Sales Tax administered by the City Engineer Department; and

WHEREAS, the period of performance for the grant is December 30, 2021 through October 31, 2024; and

WHEREAS, the City of Cheyenne will procure a professional consultant to collect and evaluate pertinent data needed for hydraulic modeling of alternative conveyance pipes thru the Union Pacific Railroad embankment in the vicinity of milepost 504.75, Sidney Sub., on the Dry Creek drainage basin and evaluate/ design a detention storage facility separated from the UPRR embankment. Preparation of Cost Estimates/ Benefit Cost Analysis (BCA) will be prepared along with construction plans and provide to the City of Cheyenne. The intent of the planning and design efforts is to produce an eligible application-ready construction project for consideration by FEMA for future BRIC program funding.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body of the City of Cheyenne, Wyoming is in support of this project and of the acceptance of this grant; and that the Mayor is authorized to execute a grant agreement to receive this grant funding for this drainage planning project.

PRESENTED, READ, AND ADOPTED THIS _____ DAY OF MAY 2022.

Patrick J. Collins, Mayor

(Seal)
ATTEST:

Kristina F. Jones, City Clerk

**GRANT AWARD AGREEMENT BETWEEN
WYOMING OFFICE OF HOMELAND SECURITY
AND
CITY OF CHEYENNE**

Grant Award for U.S. Department of Homeland Security (DHS) Federal Emergency Management Agency (FEMA) Fiscal Year 2020 Building Resilient Infrastructure and Communities (BRIC).

Subrecipient:	City of Cheyenne
DUNS#:	075758169
Federal Grant ID:	EMD-2020-BR-099
Federal Subgrant ID:	EMD-2020-BR-099-0004
Federal Award Date:	12/29/2021
Agency Grant ID:	20FEMA-CHE-BRIC-CHE4
CFDA #:	97.047 – Building Resilient Infrastructure & Communities
Federal Award Amount:	\$150,000.00
Subrecipient Match Amount:	\$50,000.00
Total Amount:	\$200,000.00
Period of Performance:	December 30, 2021 through October 31, 2024

1. **Parties.** The parties to this Grant Award Agreement (Agreement) are the Wyoming Office of Homeland Security (Agency), whose address is: 5500 Bishop Boulevard, Cheyenne, WY 82002, and the City of Cheyenne (Subrecipient), whose address is: 2101 O’Neil Avenue, Cheyenne, WY 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which the Subrecipient shall complete project scoping design work for the Cheyenne Dry Creek Union Pacific Railroad Crossing as described in Attachment A, Approved FEMA Subgrant Project Scoping Application, which is attached to and incorporated into this Agreement by this reference. Funding allocated under this Agreement is not for the purpose of research and development as defined by 2 CFR Part 200.87.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The Period of Performance of the Agreement is from December 30, 2021 through October 31, 2024. All services shall be completed during the Period of Performance.
4. **Payment.**
 - A. The Agency agrees to pay the Subrecipient for the services described in Section 5 below. Total payment under this Agreement shall not exceed one hundred fifty thousand dollars and zero cents (\$150,000.00). Payment shall be made following receipt of Subrecipient’s reimbursement request with attached backup documentation including invoices and proof of payment. Payment shall be made within forty-five (45) days after submission after submission of invoices and proof of payment pursuant to Wyo. Stat. § 16-6-602. Subrecipient shall submit invoices

in sufficient detail to ensure that payments may be made in conformance with this Agreement.

- B. No payment shall be made for work performed outside the Period of Performance of this Agreement. Should the Subrecipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, payment under this Agreement may be withheld until such time as the Subrecipient performs its duties and responsibilities to the satisfaction of Agency.
- C. Except as otherwise provided in this Agreement, the Subrecipient shall pay all costs and expenses, including travel, incurred by Subrecipient or on its behalf in connection with Subrecipient's performance and compliance with all of Subrecipient's obligations under this Agreement.

5. **Responsibilities of Subrecipient.** The Subrecipient agrees to:

- A. Perform mitigation actions as described in Attachment A, Approved FEMA Subgrant Project Scoping Application.
- B. Comply with terms and conditions as described in Attachment B, Agreement Articles, which is attached to and incorporated into this Agreement by this reference.
- C. Comply with terms and conditions as described in Attachment C, Environmental Historic Preservation Memorandum, which is attached to and incorporated into this Agreement by this reference.
- D. Submit quarterly reports outlining the project activity and current project status by the 20th day of the month following each calendar quarter (Jan 20, Apr 20, July 20, Oct 20) as described in Attachment D, Basics for Quarterly Reports form, which is attached to and incorporated into this Agreement by this reference.
- E. Comply with the 2020 Building Resilient Infrastructure and Communities (BRIC) Notice of Funding Opportunity (NOFO) and the Hazard Mitigation Assistance (HMA) Guidance to implement this Grant Agreement, and agrees that all use of funds under this Grant Agreement will be in accordance with the 2020 BRIC NOFO and the HMA Guidance.

6. **Responsibilities of Agency.** The Agency agrees to:

- A. Pay Subrecipient in accordance with Section 4 above.
- B. Be available to provide necessary and feasible technical advice, which may be reasonably required by Subrecipient.

- C. Notify Subrecipient of information and updates received from the Federal Emergency Management Agency (FEMA) or other federal agencies which may affect or otherwise restrict the availability of funds awarded to Subrecipient herein.

7. **Special Provisions.**

- A. **Assumption of Risk.** The Subrecipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Subrecipient's failure to comply with state or federal requirements. The Agency shall notify the Subrecipient of any state or federal determination of noncompliance.
- B. **Kickbacks.** Subrecipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Subrecipient breaches or violates this warranty, Agency may, at its discretion, terminate this Agreement without liability to Agency, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- C. **Monitoring Activities.** Agency shall have the right to monitor all activities related to this Agreement that are performed by Subrecipient or its sub-subrecipients. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.
- D. **No Finder's Fees:** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- E. **Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Subrecipient and related to the services and work to be performed under this Agreement, shall identify the Agency as the sponsoring agency and shall not be released without prior written approval of Agency.
- F. **Administration of Federal Funds.** Subrecipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements, Cost Principles, and Audit Requirements at 2 CFR Part 200. Federal funds made available through an award under the Building Resilient Infrastructure and Communities (BRIC) Notice of Funding Opportunity may only be used in a manner that is consistent with 42 U.S.C. § 5133; FEMA Policy (FP) 104-008-05, Hazard Mitigation Assistance: BRIC Policy and meets the eligibility criteria outlined in Section C.3; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other

program guidance as provided to it by Agency.

- G. Federal Audit Requirements.** Subrecipient agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Subrecipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 C.F.R. Part 200, Subpart F. If findings are made which cover any part of this Agreement, Subrecipient shall provide one (1) copy of the audit report to Agency and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to Agency's records.
- H. Program Income.** Subrecipient shall not deposit grant funds in an interest bearing account without prior approval of Agency. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to Agency.

8. General Provisions.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement. Any changes in the Scope of Work shall be addressed as set forth in the BRIC NOFO and the Hazard Mitigation Assistance Guidance, which are incorporated into this Agreement by this reference.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Subrecipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of the Agency.
- D. Audit and Access to Records.** The Agency and its representatives shall have access to any books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall immediately, upon receiving written instruction from the Agency, provide to any independent auditor or accountant all books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The

Subrecipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by the Agency.

- E. Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Subrecipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- F. Award of Related Agreements.** The Agency may award supplemental or successor Agreements for work related to this Agreement or may award Agreements to other Subrecipients for work related to this Agreement. The Subrecipient shall cooperate fully with other Subrecipients and the Agency in all such cases.
- G. Compliance with Laws.** The Subrecipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- H. Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement shall be kept confidential by the Subrecipient unless written permission is granted by the Agency for its release. If and when Subrecipient receives a request for information subject to this Agreement, Subrecipient shall notify Agency within ten (10) days of such request and shall not release such information to a third party unless directed to do so by Agency.
- I. Entirety of Agreement.** This Agreement, consisting of nine (9) pages; Attachment A, Approved FEMA Subgrant Project Scoping Application, consisting of fourteen (14) pages; Attachment B, Agreement Articles, consisting of nineteen (19) pages; Attachment C, Environmental Historic Preservation Memorandum, consisting of one (1) page; and Attachment D, Basics for Quarterly Reports form, consisting of two (2) pages, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.

- J. Ethics.** Subrecipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Subrecipient's profession.
- K. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein.
- L. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- M. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- N. Independent Contractor.** The Subrecipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Subrecipient shall be free from control or direction over the details of the performance of services under this Agreement. The Subrecipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Subrecipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Subrecipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Subrecipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Subrecipient or the Subrecipient's agents or employees as a result of this Agreement.
- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- P. Ownership and Return of Documents and Information.** Agency is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement. Upon termination of services, for any reason, Subrecipient agrees to return all such original and derivative information and

documents to the Agency in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.

- Q. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).
- R. Insurance Requirements.** Subrecipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, et seq., and shall provide a letter verifying its participation in the WARM or LGLP to the Agency. Subrecipient shall also adhere to the Insurance terms set forth in the BRIC NOFO and the Hazard Mitigation Assistance Guidance.
- S. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- T. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering into this Agreement and the Subrecipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, et seq., and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- U. Taxes.** The Subrecipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- V. Termination of Agreement.** This Grant may be terminated, without cause, by the Agency upon thirty (30) days written notice. This Grant may be terminated by the Agency immediately for cause if the Subrecipient fails to perform in accordance with the terms of this Agreement. The parties' rights regarding termination of this Agreement shall also be set forth in the BRIC NOFO and the Hazard Mitigation Assistance Guidance.

- W. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- X. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Y. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- Z. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- AA. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Subrecipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

AGENCY:

Wyoming Office of Homeland Security

Lynn Budd, Director

Date

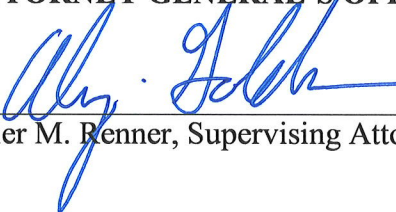
SUBRECIPIENT:

City of Cheyenne

Patrick Collins, Mayor

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

for:  #219005

Tyler M. Renner, Supervising Attorney General

2/1/22
Date

Subapplicant information

Name of federal agency
FEMA

Type of submission
Application

CHEYENNE, CITY OF

2101 O'NEIL AVE

State	DUNS #	EIN #
WY	075758169	836000050

CHEYENNE, WY 82001 United States

Subapplicant type

Local Government

Is the subapplicant subject to review by Executive Order 12372 Process?

No - Not covered

Is the subapplicant delinquent on any federal debt?

No

Contact information

Subrecipient Authorized Representative (SAR)

Robin Lockman

rlockman@cheyennecity.org

Primary phone

Mailing address

Gene MacDonald

gene@glmdesigngroup.com

Primary phone

Mailing address

Point(s) of contact

MR Gene L MacDonald

Grant Writer

gene@glmdesigngroup.com

Primary phone

3072147065

Work

Additional phones

3072147065

Mobile

Mailing address

P.O. Box 20505

Cheyenne WY 82003

Fax

Community

Please provide the following information. If the Congressional district number for your community does not display correctly, please contact your State NFIP coordinator.

Add Communities

Please find the community(ies) that will benefit from this mitigation activity by clicking on the Find communities button. If needed, modify the Congressional District number for each community by entering the updated number under the U.S. Congressional District column for that community. When finished, click the Continue button. NOTE: You should also notify your State NFIP coordinator so that the updated U.S. Congressional District number can be updated in the

Community name	County code	CID number	CRS community	CRS rating	U.S. Congressional District
CHEYENNE,021 CITY OF		560030	Y	7	1,2

Community Information System (CIS) database.

Please provide any additional comments below (optional).

The City of Cheyenne, Wyoming is applying for FY2020 Building Resilient Infrastructure and Communities (BRIC) Project Scoping funding under the Capability-and Capacity- Building (C&CB) Activity for funding assistance for a project scoping/design effort in the lower Dry Creek drainage basin. Our proposed project scoping effort/design will evaluate and identify a feasible, constructible boring location under the Union Pacific Railroad main line tracks entering into the eastern corporate limits of Cheyenne. This project scoping effort will address a critical flood hazard for the community and result in an application-ready construction project for a future BRIC funding opportunity in FY2022. The City of Cheyenne, established in 1867 as a railhead along the Union Pacific Railroad, was built along Crow Creek. As Cheyenne grew, its growth occurred away from Crow Creek and along the nine tributaries within the corporate limits including the Dry Creek drainage basin. Dry Creek is a tributary of Crow Creek with a drainage area of 14.6 sq. miles. The headwaters originate on Francis E. Warren AFB. The north and south forks of Dry Creek flow through the Western Hills subdivision and form a confluence into the main branch just east of I-25 on School District property. Much of the creek has been infringed upon as the community developed resulting in loss of floodplain and increasing drainage problems. In the community's 1988 Dry Creek Drainage Master Plan, flood problems were classified as life-safety hazards and/or property damage hazards. Commercial and residential areas upstream of the Union Pacific Railroad (UPRR) embankment in the lower basin was classified as a high life-safety hazard area. So was Campstool Road, downstream of I-80. Since 1988, commercial and residential development has grown exponentially both upstream and downstream of the UPRR and, the channel downstream of the Campstool Rd. crossing, between Campstool Rd. and I-80, has continued to degrade. An ongoing head cut is affecting the Campstool Rd. crossing, approximately 1000-feet downstream of the UPRR. Floods with the highest peak discharges affecting Cheyenne are the result of intense convective rainstorms occurring over the community. The earliest flood of record was in 1883 and, the most devastating occurred in 1985. The 1985 event produced record peak discharges throughout the Dry Creek basin resulting in overtopping of every road crossing and multiple deaths along the Sheridan Reach of Dry Creek. At the UPRR, the ensuing floodwaters became ponded to a depth of 20-feet behind the 25-foot high railroad embankment, nearly overtopping it. The ponded waters inundated rural residents and a commercial property along Whitney Rd. the discharge through the undersized UPRR culvert spread out downstream, overtopping Campstool Rd. at the confluence with Crow Creek. Floods of the 1985 magnitude have occurred in the lower Dry Creek basin in 1918, 1935, and 1955. The 1955 event produced similar depths of ponding to the 1985 flood elevation at the UPRR embankment. The UPRR culvert was originally constructed in 1903 and is severely undersized to convey much more than a 10-year flood event. The embankment begins to backup and pond water beginning with a 10-year event. The City is experiencing significant growth in the lower Dry Creek basin including continued commercial growth in the LEEDS business park, immediately downstream of the UPRR. The continued potential for significant ponding at the UPRR embankment is a dangerous situation that impacts development in the lower Dry Creek basin and presents a critical life-safety hazard for businesses and traveling public downstream of the UPRR. The City of Cheyenne is pursuing the development of a feasible and constructible boring under the UPRR along with a re-designed detention storage area away from the UPRR embankment to eliminate the existing life-safety hazard and reduce property damage due to flooding.

Floodplain Extents_1.png					
Site Exhibit.docx					
Floodplain Extents_3.png					
Floodplain Extents_2.png					

Mitigation plan

Please provide your plan information below.

Is the entity that will benefit from the proposed activity covered by the current FEMA approved multi-hazard mitigation plan in compliance with 44 CFR Part 201? **Yes**

Please provide plan detail

Plan name

Wyoming Region 7 Hazard Mitigation Plan

Plan type

Local Multijurisdictional Multi-Hazard Mitigation Plan

Plan approval date

08/01/2017

Proposed activity description

The City of Cheyenne is part of the 2017 Wyoming Region 7 Multi-Jurisdictional Hazard Mitigation Plan. The mitigation plan for the City includes mitigation strategies for flood control projects including those planned for the Dry Creek Basin to mitigate flood hazards. Our proposed project scoping activity will address a critical life-safety and property damage hazard in the lower Dry Creek basin. The recently awarded advance assistance project application to the City of Cheyenne under DR-4327 HMGP (June 2019 – project 4R) will allow the City to update the Hydrologic model for the Dry Creek Drainage Basin with an updated Master Drainage Plan and a suite of recommended mitigation strategies. The hydrologic conditions at the UPRR crossing are not likely to have significant changes with the Master Plan update. Additional culverts in conjunction with the construction of detention storage removed from the Union Pacific embankment should certainly be included in mitigation strategies coming out of the Master Drainage Plan efforts. The project scope for the Dry Creek Drainage Master Plan, located within the City and County Limits; starting upstream, (west) at the watershed boundary with F.E. Warren AFB, and ending at the Crow Creek confluence, east of town would incorporate the Union Pacific main line tracks in the lower area of the basin. The Master Plan may be completed by Fall, 2021 and hydrologic results incorporated into our proposed Dry Creek Project Scoping effort, providing an added level of accuracy. For the purposes of our proposed Project Scoping effort, the hydraulics will be completely updated based on the existing, regulatory hydrologic model. This approach will yield a high- quality deliverable and a solid basis for a feasible and constructible project as the hydrologic model input for the UPRR subbasin shouldn't change significantly with the overall basin update. The C&CB funding will assist the City of Cheyenne in developing an effective mitigation strategy that will have a significant impact on public safety along with a meaningful reduction in potential flooding of commercial and residential structures. Please provide any additional comments below (optional).

Both the 1988 Dry Creek Drainage Master Plan and the 2000 Surface Water Drainage Committee Final Report recommended construction of a flood berm to protect residential properties from flooding upstream of the UPRR. Beginning with the 2004 Storm Water Utility Ballot Initiative, there have been recommendations from the City Engineer's Office and local engineers for the construction of more efficient conveyance pipes under the UPRR along with construction of stormwater detention away from the UPRR embankment. The City has recently purchased the sump area on the upstream side of the UPRR embankment for use as a future community park for east side residents. The City is now well positioned to design and construct a new flood control facility to address these critical flood hazards and potentially provide multiple benefits to community residents in the process. Our project scoping efforts under the C&CB activity will tie into past master drainage plan recommendations, as well as, compliment the ongoing advance assistance project efforts under the recently awarded DR-4327 HMGP (June 2019 – project 4R) funding. Our project scoping/design efforts for the UPRR flood control project will lead to an application-ready mitigation project for a future BRIC funding opportunity in FY2022 and, represents a worthwhile investment of BRIC funding as we are addressing multiple community lifelines with this project.

Scope of work

The project Scope of Work (SOW) identifies the eligible activity, describes what will be accomplished and explains how the mitigation activity will be implemented. The mitigation activity must be described in sufficient detail to verify the cost estimate. All activities for which funding is requested must be identified in the SOW prior to the close of the application period. FEMA has different requirements for project, planning and management cost SOWs.

Subapplication title (include type of activity and location)

Cheyenne Dry Creek UPRR Crossing Project Scoping Design

Activities

Primary activity type

Develop or conduct engineering, environmental, feasibility and/or benefit cost analyses

Secondary activity type (Optional)

Activities supporting development of applications

Tertiary activity type (Optional)

Evaluate facilities to identify mitigation actions

Geographic areas description

The project scoping activity is located on the eastern side of Cheyenne, Wyoming where the UPRR crosses Dry Creek, approximately 3000-feet upstream of the confluence of Dry Creek with Crow Creek.

Community lifelines

Primary community lifeline

Safety and security

Primary sub-community lifeline

Community safety

Secondary community lifeline (optional)

Food, water, shelter

Secondary sub-community lifeline

Shelter

Tertiary community lifeline (optional)

Transportation

Tertiary sub-community lifeline

Railway

Hazard sources

Primary hazard source

Flooding

Secondary hazard source (optional)

Infrastructure failure

Tertiary hazard source (optional)

Uncategorized

If Uncategorized please specify

Life-Safety issues and significant property damages due to flood risk and potential of breaching of a high embankment due to impounding of flood water.

How will the mitigation activity be implemented?

The City of Cheyenne City Engineer's Office will manage the procurement of a qualified consultant; coordination and supervision of the consultant's efforts; close out and, in conjunction with the City Treasurer staff, project reporting and invoicing.

What is the scope of work of the proposal? Will it result in a complete project application for future funding opportunities?

Our proposed project scoping scope-of-work will include the following tasks: Field Surveys and Reconnaissance Selected consultant will collect and evaluate pertinent data needed for hydraulic modeling of alternative conveyance pipes under the UPRR and, evaluation/design of a detention storage facility separated from the UPRR embankment. Topographic Data Development Selected consultant will develop supplemental digital topographic data for use in the hydraulic and geotechnical modeling efforts. Hydraulic Analysis Selected consultant will develop a working hydraulic model to evaluate and design alternative conveyance pipes in conjunction with a revised upstream storage and potential downstream storage elements using a reach specific model. The model will incorporate the Environmental Protection Agency SWMM model and the CORPS' HEC-RAS model. Consultant will supplement these models with a specific culvert analysis model if necessary. The underlying hydrologic input will be taken from the regulatory hydrologic model with a QA/QC conducted using the updated hydrologic data from the ongoing Dry Creek master plan update when it becomes available. Preparation of Cost Estimates/BCA Development Selected consultant will prepare construction plans and provide the City with engineer's estimates for construction cost. Consultant will conduct BCA of each alternative hydraulic analysis of potential mitigation strategies/ projects ensuring the constructability and cost-effectiveness of the recommended strategy. This should result in an eligible application-ready construction project for consideration by FEMA for FY2022 BRIC program funding.

Who will manage and complete the mitigation activity?

The City of Cheyenne City Engineer's Office, in conjunction with City Treasurer staff and a qualified consultant, will manage and administer this project scoping effort. City Engineer Office staff has experience and the necessary expertise to manage a project of this size and complexity, as well as coordinate and assist with additional public outreach if appropriate. A qualified consultant will be hired through a competitive procurement process to execute the project scoping tasks. The consultant will also assist City staff in developing an application for FY2022 BRIC program funding for a construction project, if eligible.

What are you doing to consider other risks in the project area?

The City's ongoing Dry Creek Master Drainage Plan Update is the first step in developing mitigation strategies/projects for reducing/eliminating the existing flood hazards for the lower Dry Creek Basin. Development of the drainage strategies in the Master Plan Update will complement our proposed project scoping effort for the UPRR embankment/flood hazard and provide a reduction to property damages due to flooding and an elimination of critical life-safety hazards due to flooding. Both the Dry Creek Master Drainage Plan Update and our proposed project scoping effort are implementations of prior recommendations from master plans, the City Engineer's Office, and local engineers to address the existing, critical flood hazards facing residents, businesses, and the traveling public in the lower Dry Creek Basin.

Is there an estimate for when the mitigation activity will take place?

The City of Cheyenne will initiate the Dry Creek UPRR crossing project scoping design efforts funded under the C&CB activities in August 2021. The City is desiring to have a construction project grant ready for submission to FEMA's BRIC program in the fall of 2022. Construction would begin in 2023.

What alternatives will be considered?

The selected consultant will use an iterative approach with the hydraulic modeling of project scoping alternative designs, resulting in numerous alternatives to be vetted with the community and evaluated by qualified engineers through the course of the project scoping design efforts. This approach will lead to a cost-effective project recommendation for the community.

Do activities being considered align with hazard mitigation plan?

The project scoping efforts proposed for the study basin are aligned with hazards addressed in the Wyoming Region 7 Multi-Jurisdictional Hazards Plan. Our proposed project scoping efforts will lead to a mitigation project that significantly reduces the existing property damage hazard due to flooding and, eliminates the existing life-safety hazard due to potential breaching of a high embankment.

Additional comments (optional)

Schedule

Specify the work schedule for the mitigation activities.

Add tasks to the schedule

Please include all tasks necessary to implement this mitigation activity; include descriptions and estimated time frames.

Task Name

Initial Contractural Follow Through with FEMA & WY Office of Homeland Security upon Notice-of-Award

Start Month

06

Task Duration (in Months)

2 months

Task Description

Coordination with FEMA and Wyoming Office of Homeland Security to kick off the project scoping efforts upon Notice-of-Award.

Task Name

Consultant Selection/Dry Creek UPRR Crossing Project Scoping Design Development

Start Month

08

Task Duration (in Months)

11 months

Task Description

A competitive Procurement process for hiring a design consultant to assist the City with the project scoping design effort. The qualified consultant will commence work upon a Notice-to-Proceed from the City. The selected consultant will develop a mitigation design for the UPRR reach of Dry Creek and assist the City with a public process. Refer to Scope-of-Work.

Task Name

Project Closeout/Preparation of BRIC FY2022 Project Application

Start Month

07

Task Duration (in Months)

3 months

Task Description

Preparation of BRIC construction project mitigation application for FY2022, Final project close out with FEMA and the Wyoming Office of Homeland Security. Project mitigation application to be recommended project approach - refer to scope-of-work for more detail.

Estimate the total duration of your proposed activities (in months).

16

Proposed project start and end dates

Start Date

2021-06-01

End Date

2022-09-30

Budget

Budget cost estimate and management cost (optional) should directly link to your scope of work and work schedule. You must add at least one item(s) greater than \$0 for your cost estimate. Once you have added item(s) for your cost estimate, you may then add the item(s) for management cost (optional). As necessary, please adjust your federal/non-federal cost shares and add the non-federal funding source(s) you are planning to use this project. Once you have completed this section, please click the Continue button at the bottom of this page to navigate to the next section.

Add budget cost types and item(s)

Click the Add cost type button below to add cost type cost estimate and then click the Add item(s) button to add the item(s) for the cost estimate. After adding items to your cost estimate, you may then select Add cost type button again to add management costs (optional) and applicable items.

Grand total: \$200,000.00

Budget type: Non construction

Cost type: Cost estimate

\$200,000.00

Cost estimate is the line item(s) budget to support the scope of work for the execution and completion of the project. Be sure to include the cost associated with revisions/formal adoption. To add a line item, please click on the Add an item button. Click anywhere within each row or the arrow to edit or delete the line item(s).

Cost Items

Item: BCA Development

\$12,000.00

Item: Permitting/Agency Coordination

\$18,000.00

Item: Topographic Data Development

\$6,600.00

Item: Field Surveys and Site Reconnaissance

\$11,000.00

Item: Hydraulic Analysis/Design Development

\$62,400.00

Item: Cost Estimate Development

\$10,400.00

Item: Project Management/Administration

\$12,000.00

Item: Preparation of BRIC Project Application

\$18,000.00

Item: Geotechnical Evaluation

\$16,000.00

Item: Public Outreach/Stakeholder Coordination

\$18,000.00

Item: Final Project Deliverable/Report

\$15,600.00

Program income (optional)

Cost share

Cost share or matching means the portion of project costs not paid by federal funds.

Proposed federal vs. non-federal funding shares

Hazard Mitigation Assistance (HMA) funds may be used to pay up to 75% federal share of the eligible activity costs. For Building Resilient Infrastructure and communities (BRIC), small impoverished communities may be eligible for up to 90% federal share. For Flood Mitigation Assistance (FMA), and severe repetitive loss (SRL) properties may be eligible for up to 100% federal share. Repetitive loss (RL) properties may be eligible for up to 90% federal share. Flood Mitigation Assistance (FMA) and severe repetitive loss (SRL) properties may be eligible for up to 100% federal share. Repetitive loss (RL) properties may be eligible for up to 90% federal share.

Is this a small impoverished community?

This determines your federal/non-federal share ratio.

No

% Percentage \$
Dollar amount

Proposed federal share

75.00

150000.00

Proposed non-federal share

25.00

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50000.00

Based on total budget cost: \$200,000.00

Non-federal funding sources here

That portion of the total costs of the program provided by the non-federal entity in the form of in-kind donations or cash match received from third parties or contributed by the agency. In-kind contributions must be provided and cash expended during the project period along with federal funds to satisfy the matching requirements.

Funding source	Funding amount
	% Non-federal share by source

Funding source: City of Cheyenne's 1% Drainage Fund

100.00%

\$50,000.00

Please provide any additional comments below (optional).

The estimated cost for professional design services for the City's Proposed project scoping effort is \$200,000. The City Engineer's Office will use a competitive procurement process to select a qualified consultant to execute the project scoping design effort, negotiating the contractual cost for professional services. The City's \$50,000 match (25 %) will come from the City's 1% Drainage Fund and is available immediately. FEMA's investment and partnership with our community

for our project scoping efforts under the C&CB funding activity will help us address key community lifeline components fundamental to BRIC funding initiatives and position Cheyenne to be considerably more resilient moving forward.

[REDACTED]

[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]

[Matching Funds](#) [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]

[Letter to WY](#)

[Emergency](#)

[Management.pdf](#)

Cost-effectiveness

How was cost-effectiveness determined for this project?

☐ Not applicable

Please explain why this project is not applicable.

This is a Project Scoping effort to develop an eligible construction project for BRIC funding consideration.

Please provide any additional comments below (optional).

The City of Cheyenne is pursuing C&CB Project Scoping funding to help fund a project scoping/design effort in the lower Dry Creek Basin. The City intends on evaluating alternative designs to determine a feasible, constructible boring under the Union Pacific main line tracks for new culverts/pipes. A detailed Hydraulic model will be developed along with a geotechnical analysis to base the design upon. The completed design will provide the community with a construction-ready BRIC Mitigation Project for the FY2022 grant cycle. The existing conditions for flow in Dry Creek at the UPRR crossing present a significant hazard with respect to compromise of the 25-foot tall railroad embankment by flood waters. The design effort will include evaluation of downstream conditions along with proposed mitigation for any impacts caused by the new culverts. There is a unique opportunity to partner with the Laramie County Conservation District to provide environmental enhancements on their headquarters property located immediately downstream of the UPRR embankment. Additional discharge downstream would create more sustainable conditions for additional wetlands, meeting their mission statement for their headquarters site. Additional storage, removed from the UPRR embankment, along with increased conveyance downstream would address the current noncompliant situation of using the railroad embankment as a dam. In the 1985 flood event, the railroad embankment impounded stormwater to a depth of 20-feet. Our project scoping design effort would eliminate this unsafe condition and provide restoration of wetlands both upstream and downstream of the UPRR crossing. Results from our master drainage planning will result in a construction-ready mitigation grant for consideration in the FY2022 BRIC program.

Evaluation

Is the applicant participating in the [Community Rating System \(CRS\)](#)?

Yes

Select rating.

7

Is the applicant a [Cooperating Technical Partner \(CTP\)](#)?

No

Was this created from a previous FEMA HMA Advance assistance / Project scoping award?

No

Has the applicant adopted building codes consistent with the [international codes](#)?

Yes

Year of building code

2018

Please provide the building code.

2018 International Building Code

Have the applicant's building codes been assessed on the [Building Code Effectiveness Grading Schedule \(BCEGS\)](#)?

Yes

Select rating.

4

Describe involvement of partners to enhance the mitigation activity outcome.

The City has had active public outreach processes for numerous projects and planning efforts. They will be conducting an extensive public outreach process for the ongoing Dry Creek Master Drainage Plan Update as well as one for the concurrent MPO planning effort for the newly created East Park, immediately upstream of the UPRR crossing of Dry Creek. They have coordinated and closely partnered with state and federal entities local project stakeholders. The Town is requesting a C&CB project scoping investment of \$150,000 (75% federal share) for cost sharing for the lower Dry Creek UPRR Crossing Project Scoping Design effort. The City's 25% share of the project scoping effort (\$50,000) will be 100% sourced through our dedicated 1% Drainage Fund.

Attachment A
Subgrant Project Scoping Application

Additional comments (optional)

The Cheyenne community has experienced exponential growth, both residential and commercial, in the lower Dry Creek Basin in recent years. The City is now proactively attempting to address long-standing critical flood hazards that pose significant life-safety and property damage hazards to the community and impact continued economic development in the basin. The City is pursuing an update of the Dry Creek drainage master plan including a high-level SWMM model and underlying GIS capability to better understand, prioritize, and ultimately address the critical drainage issues that have impacted the community. Concurrently, the City is pursuing a drainage improvement for the UPRR crossing of Dry Creek to address a critical life-safety hazard affecting residential and commercial properties as well as the traveling public. The City has experienced flooding in the lower Dry Creek Basin in the years since the 1985 flood event. With every passing year, the probability of another event similar in magnitude to the 1985 event only increases. The potential for a catastrophic breach of the UPRR embankment due to ponding of stormwater is a real concern for the community. The potential for property damages due to the existing condition of ponded stormwater has increased with the additional development that has occurred in the lower basin. The Federal Emergency Management Agency's investment will provide the City of Cheyenne the opportunity to identify and design the most cost-effective flood control solution for this reach of Dry Creek and reduce the existing risk of flooding within our community. The development of a detailed project scoping design is the first step towards achieving that goal.

[REDACTED]

[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]

[BCEGS](#) [REDACTED] [REDACTED] [REDACTED] [REDACTED]
[Rating.pdf](#)

[REDACTED]

[Community1 comment, 4 attachments](#)
[Mitigation plan1 comment, 0 attachments](#)
[Scope of work0 comment, 0 attachments](#)
[Budget1 comment, 1 attachments](#)
[Cost-effectiveness1 comment, 0 attachments](#)
[Evaluation1 comment, 1 attachments](#)

Assurances and certifications

OMB number: 4040-0007, Expiration date: 02/28/2022 [View burden statement](#)

SF-424B: Assurances - Non-Construction Programs

OMB Number: 4040-0007

Expiration Date: 02/28/2022

Certain of these assurances may not be applicable to your project or program. If you have any questions, please contact the awarding agency. Further, certain Federal awarding agencies may require applicants to certify to additional assurances. If such is the case, you will be notified.

As the duly authorized representative of the applicant, I certify that the applicant:

1. Has the legal authority to apply for Federal assistance and the institutional, managerial and financial capability (including funds sufficient to pay the non-Federal share of project cost) to ensure proper planning, management and completion of the project described in this application.
2. Will give the awarding agency, the Comptroller General of the United States and, if appropriate, the State, through any authorized representative, access to and the right to examine all records, books, papers, or documents related to the award; and will establish a proper accounting system in accordance with generally accepted accounting standards or agency directives.
3. Will establish safeguards to prohibit employees from using their positions for a purpose that constitutes or presents the appearance of personal or organizational conflict of interest, or personal gain.
4. Will initiate and complete the work within the applicable time frame after receipt of approval of the awarding agency.
5. Will comply with the Intergovernmental Personnel Act of 1970 (42 U.S.C. §§4728-4763) relating to prescribed standards for merit systems for programs funded under one of the 19 statutes or regulations specified in Appendix A of OPM's Standards for a Merit System of Personnel Administration (5 C.F.R. 900, Subpart F).
6. Will comply with all Federal statutes relating to nondiscrimination. These include but are not limited to: (a) Title VI of the Civil Rights Act of 1964 (P.L. 88-

- 352) which prohibits discrimination on the basis of race, color or national origin; (b) Title IX of the Education Amendments of 1972, as amended (20 U.S.C. §§1681-1683, and 1685-1686), which prohibits discrimination on the basis of sex; (c) Section 504 of the Rehabilitation Act of 1973, as amended (29 U.S.C. §794), which prohibits discrimination on the basis of handicaps; (d) the Age Discrimination Act of 1975, as amended (42 U.S.C. §§6101-6107), which prohibits discrimination on the basis of age; (e) the Drug Abuse Office and Treatment Act of 1972 (P.L. 92-255), as amended, relating to nondiscrimination on the basis of drug abuse; (f) the Comprehensive Alcohol Abuse and Alcoholism Prevention, Treatment and Rehabilitation Act of 1970 (P.L. 91-616), as amended, relating to nondiscrimination on the basis of alcohol abuse or alcoholism; (g) §§523 and 527 of the Public Health Service Act of 1912 (42 U.S.C. §§290 dd-3 and 290 ee- 3), as amended, relating to confidentiality of alcohol and drug abuse patient records; (h) Title VIII of the Civil Rights Act of 1968 (42 U.S.C. §§3601 et seq.), as amended, relating to nondiscrimination in the sale, rental or financing of housing; any other nondiscrimination provisions in the specific statute(s) under which application for Federal assistance is being made; and, (j) the requirements of any other nondiscrimination statute(s) which may apply to the application.
7. Will comply, or has already complied, with the requirements of Titles II and III of the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970 (P.L. 91-646) which provide for fair and equitable treatment of persons displaced or whose property is acquired as a result of Federal or federally-assisted programs. These requirements apply to all interests in real property acquired for project purposes regardless of Federal participation in purchases.
 8. Will comply, as applicable, with provisions of the Hatch Act (5 U.S.C. §§1501-1508 and 7324-7328) which limit the political activities of employees whose principal employment activities are funded in whole or in part with Federal funds.
 9. Will comply, as applicable, with the provisions of the Davis-Bacon Act (40 U.S.C. §§276a to 276a-7), the Copeland Act (40 U.S.C. §276c and 18 U.S.C. §874), and the Contract Work Hours and Safety Standards Act (40 U.S.C. §§327-333), regarding labor standards for federally-assisted construction subagreements.
 10. Will comply, if applicable, with flood insurance purchase requirements of Section 102(a) of the Flood Disaster Protection Act of 1973 (P.L. 93-234) which requires recipients in a special flood hazard area to participate in the program and to purchase flood insurance if the total cost of insurable construction and acquisition is \$10,000 or more.
 11. Will comply with environmental standards which may be prescribed pursuant to the following: (a) institution of environmental quality control measures under the National Environmental Policy Act of 1969 (P.L. 91-190) and Executive Order (EO) 11514; (b) notification of violating facilities pursuant to EO 11738; (c) protection of wetlands pursuant to EO 11990; (d) evaluation of flood hazards in floodplains in accordance with EO 11988; (e) assurance of project consistency with the approved State management program developed under the Coastal Zone Management Act of 1972 (16 U.S.C. §§1451 et seq.); (f) conformity of Federal actions to State (Clean Air) Implementation Plans under Section 176(c) of the Clean Air Act of 1955, as amended (42 U.S.C. §§7401 et seq.); (g) protection of underground sources of drinking water under the Safe Drinking Water Act of 1974, as amended (P.L. 93-523); and, (h) protection of endangered species under the Endangered Species Act of 1973, as amended (P.L. 93-205).
 12. Will comply with the Wild and Scenic Rivers Act of 1968 (16 U.S.C. §§1271 et seq.) related to protecting components or potential components of the national wild and scenic rivers system.
 13. Will assist the awarding agency in assuring compliance with Section 106 of the National Historic Preservation Act of 1966, as amended (16 U.S.C. §470), EO 11593 (identification and protection of historic properties), and the Archaeological and Historic Preservation Act of 1974 (16 U.S.C. §§469a-1 et seq.).
 14. Will comply with P.L. 93-348 regarding the protection of human subjects involved in research, development, and related activities supported by this award of assistance.
 15. Will comply with the Laboratory Animal Welfare Act of 1966 (P.L. 89-544, as amended, 7 U.S.C. §§2131 et seq.) pertaining to the care, handling, and treatment of warm blooded animals held for research, teaching, or other activities supported by this award of assistance.
 16. Will comply with the Lead-Based Paint Poisoning Prevention Act (42 U.S.C. §§4801 et seq.) which prohibits the use of lead-based paint in construction or rehabilitation of residence structures.

Attachment A
Subgrant Project Scoping Application

17. Will cause to be performed the required financial and compliance audits in accordance with the Single Audit Act Amendments of 1996 and OMB Circular No. A-133, "Audits of States, Local Governments, and Non-Profit Organizations."
18. Will comply with all applicable requirements of all other Federal laws, executive orders, regulations, and policies governing this program.
19. Will comply with the requirements of Section 106(g) of the Trafficking Victims Protection Act (TVPA) of 2000, as amended (22 U.S.C. 7104) which prohibits grant award recipients or a sub-recipient from (1) Engaging in severe forms of trafficking in persons during the period of time that the award is in effect (2) Procuring a commercial sex act during the period of time that the award is in effect or (3) Using forced labor in the performance of the award or subawards under the award.

OMB number: 1660-0083, Expiration date: 10/31/2021 [View burden statement](#)

Certifications regarding lobbying; Debarment, Suspension and other responsibility matters; and Drug-free workplace requirements

Content:

OMB Control Number: 1660-0083

Expiration: 10/31/2021

Applicants should refer to the regulations cited below to determine the certification to which they are required to attest. Applicants should also review the instructions for certification included in the regulations before completing this form. Signature of this form provides for compliance with certification requirements under 44 CFR Part 18, "New Restrictions on Lobbying" and 28 CFR Part 17, "Government-wide Debarment and Suspension (Nonprocurement) and Government-wide Requirements for Drug-Free Workplace (Grants)." The certifications shall be treated as a material representation of fact upon which reliance will be placed when the Federal Emergency Management Agency (FEMA) determines to award the transaction, grant, or cooperative agreement.

1. LOBBYING

As required by section 1352, Title 31 of the U.S. Code, and implemented at 44 CFR Part 18, for persons entering into a grant or cooperating agreement over \$ 100,000, as defined at 44 CFR Part 18, the applicant certifies that:

- (a) No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the making of any Federal grant, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal grant or cooperative agreement.
- (b) If any other funds than Federal appropriated funds have been paid or will be paid to any other person for influencing or attempting to influence an officer or employee of any agency, a member of Congress, an officer or an employee of Congress, or employee of a member of Congress in connection with this Federal Grant or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure of Lobbying Activities," in accordance with its instructions.
- (c) The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subgrants, contracts under grants and cooperative agreements, and subcontracts) and that all subrecipients shall certify and disclose accordingly.



Standard Form-LLL "Disclosure of Lobbying Activities" attached (This form must be attached to certification if nonappropriated funds are to be used to influence activities.)

2. DEBARMENT, SUSPENSION, AND OTHER RESPONSIBILITY MATTERS (DIRECT RECIPIENT)

Attachment A
Subgrant Project Scoping Application

As required by Executive Order 12549, Debarment and Suspension, and implemented at 44 CFR Part 67, for prospective participants in primary covered transactions, as defined at 44 CFR Part 17, Section 17.510-A.

- A. The applicant certifies that it and its principals:
 - a. Are not presently debarred, suspended, proposed for debarment, declared ineligible, sentenced to a denial of Federal benefits by a State or Federal court, or voluntarily excluded from covered transactions by any Federal department or agency;
 - b. Have not within a three-year period preceding this application been convicted of a or had a civilian judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or perform a public a public (Federal ,State, or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;
 - c. Are not presently indicted for otherwise criminally or civilly charged by a governmental entity (Federal, State, or local) with commission of any of the offenses enumerated in paragraph (1) (b) of this certification; and
 - d. Have not within a three-year period preceding this application had one or more public transactions (Federal, State, or local) terminated for cause of default; and
- B. Where the applicant is unable to certify to any of the statements in this certification, he or she shall attach an explanation to this application.

3. DRUG-FREE WORKPLACE (GRANTEE OTHER THAN INDIVIDUALS)

As required by the Drug-Free Workplace Act of 1988, and implemented at 44 CFR Part 17, Subpart F, for grantees, as defined at 44 CFR Part 17.615 and 17.620-

- A. The applicant certifies that it will continue to provide a drug-free workplace by;
 - a. Publishing a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the grantee's workplace and specifying the actions that will be taken against employees for violation of such prohibition;
 - b. Establishing an on-going drug free awareness program to inform employees about-
 - 1. The dangers of drug abuse in the workplace;
 - 2. The grantee's policy of maintaining a drug-free workplace;
 - 3. Any available drug counseling, rehabilitation, and employee assistance programs; and
 - 4. The penalties that may be imposed upon employees for drug abuse violations occurring in the workplace;
 - c. Making it a requirement that each employee to be engaged in the performance of the grant to be given a copy of the statement required by paragraph (a);
 - d. Notifying the employee in the statement required by paragraph (a) that, as a condition of employment under the grant, the employee will-
 - 1. Abide by the term of the statement; and
 - 2. Notify the employee in writing of his or her conviction for a violation of a criminal drug statute occurring ion the workplace no later than five calendar days after such convictions;
 - e. Notifying the agency, in writing, within 10 calendar days after receiving notice under subparagraph (d)(2) from an employee or otherwise receiving actual notice of such conviction. Employers of convicted employees must provide notice, including position, title, to the applicable FEMA awarding office, i.e., regional office or FEMA office.
 - f. Taking one of the following actions, within 30 calendar days of receiving notice under subparagraph (d)(2), with respect to anyemployee who is convicted-

Attachment A
Subgrant Project Scoping Application

1. Taking appropriate personnel action against such an employee, up to and including termination, consistent with the requirements of the Rehabilitation act of 1973, as amended; or
 2. Requiring such an employee to participate satisfactorily in a drug abuse assistance or rehabilitation program approved for such purposes by a Federal, State, or local health, law enforcement, or other appropriate agency;
- g. Making a good faith effort to continue to maintain a drug free workplace through implementation of paragraphs (a), (b), (c), (d), (e) and (f).

- B. The grantee may insert in the space provided below the site(s) for the performance of work done in connection with the specific grant:

Place of Performance (Street address, City, County, State, Zip code)



There are workplaces on file that are not identified

Sections 17.630 of the regulations provide that a grantee that is a State may elect to make one certification in each Federal fiscal year. A copy of which should be included with each application for FEMA funding. States and State agencies may elect to use a state wide certification.

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Article 1

Assurances, Administrative Requirements, Cost Principles, Representations and Certifications

DHS financial assistance recipients must complete either the Office of Management and Budget (OMB) Standard Form 424B Assurances – Non-Construction Programs, or OMB Standard Form 424D Assurances – Construction Programs, as applicable. Certain assurances in these documents may not be applicable to your program, and the DHS financial assistance office (DHS FAO) may require applicants to certify additional assurances. Applicants are required to fill out the assurances applicable to their program as instructed by the awarding agency. Please contact the DHS FAO if you have any questions. DHS financial assistance recipients are required to follow the applicable provisions of the Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards located at Title 2, Code of Federal Regulations (C.F.R.) Part 200, and adopted by DHS at 2 C.F.R. Part 3002. By accepting this agreement, the recipient and its executives, as defined in 2 C.F.R. § 170.315, certify that the recipient policies are in accordance with OMB guidance located at 2 C.F.R. Part 200, all applicable federal laws, and relevant Executive guidance.

Article 2

DHS Specific Acknowledgements and Assurances

All recipients, subrecipients, successors, transferees, and assignees must acknowledge and agree to comply with applicable provisions governing DHS access to records, accounts, documents, information, facilities, and staff. 1. Recipients must cooperate with any compliance reviews or compliance investigations conducted by DHS. 2. Recipients must give DHS access to, and the right to examine and copy, records, accounts, and other documents and sources of information related to the federal financial assistance award and permit access to facilities, personnel, and other individuals and information as may be necessary, as required by DHS regulations and other applicable laws or program guidance. 3. Recipients must submit timely, complete, and accurate reports to the appropriate DHS officials and maintain appropriate backup documentation to support the reports. 4. Recipients must comply with all other special reporting, data collection, and evaluation requirements, as prescribed by law or detailed in program guidance. 5. Recipients of federal financial assistance from DHS must complete the DHS Civil Rights Evaluation Tool within thirty (30) days of receipt of the Notice of Award or, for State Administrative Agencies, thirty (30) days from receipt of the DHS Civil Rights Evaluation Tool from DHS or its awarding component agency. After the initial submission for the first award under which this term applies, recipients are required to provide this information once every two (2) years if they have an active award, not every time an award is made. Recipients should submit the completed tool, including supporting materials, to CivilRightsEvaluation@hq.dhs.gov. This tool clarifies the civil rights obligations and related reporting requirements contained in the DHS Standard Terms and Conditions. Subrecipients are not required to complete and submit this tool to DHS. The evaluation tool can be found at <https://www.dhs.gov/publication/dhs-civil-rights-evaluation-tool>. The DHS Office for Civil Rights and Civil Liberties will consider, in its discretion, granting an extension if the recipient identifies steps and a timeline for completing the tool. Recipients should request extensions by emailing the request to CivilRightsEvaluation@hq.dhs.gov prior to expiration of the 30-day deadline.

Article 3

Acknowledgement of Federal Funding from DHS

Recipients must acknowledge their use of federal funding when issuing statements, press releases, requests for proposal, bid invitations, and other documents describing projects or programs funded in whole or in part with federal funds.

Article 4

Activities Conducted Abroad

Recipients must ensure that project activities carried on outside the United States are coordinated as necessary with appropriate government authorities and that appropriate licenses, permits, or approvals are obtained.

Attachment B
Agreement Articles

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| Article 5 | Age Discrimination Act of 1975
Recipients must comply with the requirements of the Age Discrimination Act of 1975, Pub. L. No. 94-135 (1975) (codified as amended at Title 42, U.S. Code, § 6101 et seq.), which prohibits discrimination on the basis of age in any program or activity receiving federal financial assistance. |
| Article 6 | Americans with Disabilities Act of 1990
Recipients must comply with the requirements of Titles I, II, and III of the Americans with Disabilities Act, Pub. L. No. 101-336 (1990) (codified as amended at 42 U.S.C. §§ 12101–12213), which prohibits recipients from discriminating on the basis of disability in the operation of public entities, public and private transportation systems, places of public accommodation, and certain testing entities. |
| Article 7 | Best Practices for Collection and Use of Personally Identifiable Information
Recipients who collect personally identifiable information (PII) are required to have a publicly available privacy policy that describes standards on the usage and maintenance of the PII they collect. DHS defines PII as any information that permits the identity of an individual to be directly or indirectly inferred, including any information that is linked or linkable to that individual. Recipients may also find the DHS Privacy Impact Assessments: Privacy Guidance at http://www.dhs.gov/xlibrary/assets/privacy/privacy_pia_guidance_june2010.pdf and Privacy Template at https://www.dhs.gov/sites/default/files/publications/privacy_pia_template_2017.pdf as useful resources respectively. |
| Article 8 | Civil Rights Act of 1964 – Title VI
Recipients must comply with the requirements of Title VI of the Civil Rights Act of 1964 (codified as amended at 42 U.S.C. § 2000d et seq.), which provides that no person in the United States will, on the grounds of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving federal financial assistance. DHS implementing regulations for the Act are found at 6 C.F.R. Part 21 and 44 C.F.R. Part 7. |

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Article 9

Civil Rights Act of 1968

Recipients must comply with Title VIII of the Civil Rights Act of 1968, Pub. L. No. 90-284, as amended through Pub. L. 113-4, which prohibits recipients from discriminating in the sale, rental, financing, and advertising of dwellings, or in the provision of services in connection therewith, on the basis of race, color, national origin, religion, disability, familial status, and sex (see 42 U.S.C. § 3601 et seq.), as implemented by the U.S. Department of Housing and Urban Development at 24 C.F.R. Part 100. The prohibition on disability discrimination includes the requirement that new multifamily housing with four or more dwelling units—i.e., the public and common use areas and individual apartment units (all units in buildings with elevators and ground-floor units in buildings without elevators)—be designed and constructed with certain accessible features. (See 24 C.F.R. Part 100, Subpart D.)

Article 10

Copyright

Recipients must affix the applicable copyright notices of 17 U.S.C. §§ 401 or 402 and an acknowledgement of U.S. Government sponsorship (including the award number) to any work first produced under federal financial assistance awards.

Article 11

Debarment and Suspension

Recipients are subject to the non-procurement debarment and suspension regulations implementing Executive Orders (E.O.) 12549 and 12689, which are at 2 C.F.R. Part 180 as adopted by DHS at 2 C.F.R. Part 3000. These regulations restrict federal financial assistance awards, subawards, and contracts with certain parties that are debarred, suspended, or otherwise excluded from or ineligible for participation in federal assistance programs or activities.

Article 12

Drug-Free Workplace Regulations

Recipients must comply with drug-free workplace requirements in Subpart B (or Subpart C, if the recipient is an individual) of 2 C.F.R. Part 3001, which adopts the Government-wide implementation (2 C.F.R. Part 182) of Sec. 5152-5158 of the Drug-Free Workplace Act of 1988 (41 U.S.C. §§ 8101-8106).

Article 13

Duplication of Benefits

Any cost allocable to a particular federal financial assistance award provided for in 2 C.F.R. Part 200, Subpart E may not be charged to other federal financial assistance awards to overcome fund deficiencies; to avoid restrictions imposed by federal statutes, regulations, or federal financial assistance award terms and conditions; or for other reasons. However, these prohibitions would not preclude recipients from shifting costs that are allowable under two or more awards in accordance with existing federal statutes, regulations, or the federal financial assistance award terms and conditions.

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Article 14 Education Amendments of 1972 (Equal Opportunity in Education Act) – Title IX

Recipients must comply with the requirements of Title IX of the Education Amendments of 1972, Pub. L. 92-318 (1972) (codified as amended at 20 U.S.C. § 1681 et seq.), which provide that no person in the United States will, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any educational program or activity receiving federal financial assistance. DHS implementing regulations are codified at 6 C.F.R. Part 17 and 44 C.F.R. Part 19.

Article 15 Energy Policy and Conservation Act

Recipients must comply with the requirements of the Energy Policy and Conservation Act, Pub. L. 94- 163 (1975) (codified as amended at 42 U.S.C. § 6201 et seq.), which contain policies relating to energy efficiency that are defined in the state energy conservation plan issued in compliance with this Act.

Article 16 False Claims Act and Program Fraud Civil Remedies

Recipients must comply with the requirements of the False Claims Act, 31 U.S.C. §§ 3729-3733, which prohibit the submission of false or fraudulent claims for payment to the federal government. (See 31 U.S.C. §§ 3801-3812, which details the administrative remedies for false claims and statements made.)

Article 17 Federal Debt Status

All recipients are required to be non-delinquent in their repayment of any federal debt. Examples of relevant debt include delinquent payroll and other taxes, audit disallowances, and benefit overpayments. (See OMB Circular A-129.)

Article 18 Federal Leadership on Reducing Text Messaging while Driving

Recipients are encouraged to adopt and enforce policies that ban text messaging while driving as described in E.O. 13513, including conducting initiatives described in Section 3(a) of the Order when on official government business or when performing any work for or on behalf of the federal government.

Article 19 Fly America Act of 1974

Recipients must comply with Preference for U.S. Flag Air Carriers (air carriers holding certificates under 49 U.S.C. § 41102) for international air transportation of people and property to the extent that such service is available, in accordance with the International Air Transportation Fair Competitive Practices Act of 1974, 49 U.S.C. § 40118, and the interpretative guidelines issued by the Comptroller General of the United States in the March 31, 1981, amendment to Comptroller General Decision B-138942.

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| Article 20 | Hotel and Motel Fire Safety Act of 1990
In accordance with Section 6 of the Hotel and Motel Fire Safety Act of 1990, 15 U.S.C. § 2225a, recipients must ensure that all conference, meeting, convention, or training space funded in whole or in part with federal funds complies with the fire prevention and control guidelines of the Federal Fire Prevention and Control Act of 1974, (codified as amended at 15 U.S.C. § 2225.) |
| Article 21 | Limited English Proficiency (Civil Rights Act of 1964, Title VI)
Recipients must comply with Title VI of the Civil Rights Act of 1964, (42 U.S.C. § 2000d et seq.) prohibition against discrimination on the basis of national origin, which requires that recipients of federal financial assistance take reasonable steps to provide meaningful access to persons with limited English proficiency (LEP) to their programs and services. For additional assistance and information regarding language access obligations, please refer to the DHS Recipient Guidance: https://www.dhs.gov/guidance-published-help-department-supported-organizations-provide-meaningful-access-people-limited and additional resources on http://www.lep.gov . |
| Article 22 | Lobbying Prohibitions
Recipients must comply with 31 U.S.C. § 1352, which provides that none of the funds provided under a federal financial assistance award may be expended by the recipient to pay any person to influence, or attempt to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with any federal action related to a federal award or contract, including any extension, continuation, renewal, amendment, or modification. |
| Article 23 | National Environmental Policy Act
Recipients must comply with the requirements of the National Environmental Policy Act of 1969 (NEPA), Pub. L. 91-190 (1970) (codified as amended at 42 U.S.C. § 4321 et seq.) and the Council on Environmental Quality (CEQ) Regulations for Implementing the Procedural Provisions of NEPA, which require recipients to use all practicable means within their authority, and consistent with other essential considerations of national policy, to create and maintain conditions under which people and nature can exist in productive harmony and fulfill the social, economic, and other needs of present and future generations of Americans. |
| Article 24 | Nondiscrimination in Matters Pertaining to Faith-Based Organizations
It is DHS policy to ensure the equal treatment of faith-based organizations in social service programs administered or supported by DHS or its component agencies, enabling those organizations to participate in providing important social services to beneficiaries. Recipients must comply with the equal treatment policies and requirements contained in 6 C.F.R. Part 19 and other applicable statutes, regulations, and guidance governing the participations of faith-based organizations in individual DHS programs. |

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| Article 25 | Non-Supplanting Requirement
Recipients receiving federal financial assistance awards made under programs that prohibit supplanting by law must ensure that federal funds do not replace (supplant) funds that have been budgeted for the same purpose through non-federal sources. |
| Article 26 | Notice of Funding Opportunity Requirements
All the instructions, guidance, limitations, and other conditions set forth in the Notice of Funding Opportunity (NOFO) for this program are incorporated here by reference in the award terms and conditions. All recipients must comply with any such requirements set forth in the program NOFO. |
| Article 27 | Patents and Intellectual Property Rights
Recipients are subject to the Bayh-Dole Act, 35 U.S.C. § 200 et seq, unless otherwise provided by law. Recipients are subject to the specific requirements governing the development, reporting, and disposition of rights to inventions and patents resulting from federal financial assistance awards located at 37 C.F.R. Part 401 and the standard patent rights clause located at 37 C.F.R. § 401.14. |
| Article 28 | Procurement of Recovered Materials
States, political subdivisions of states, and their contractors must comply with Section 6002 of the Solid Waste Disposal Act, Pub. L. 89-272 (1965), (codified as amended by the Resource Conservation and Recovery Act, 42 U.S.C. § 6962.) The requirements of Section 6002 include procuring only items designated in guidelines of the Environmental Protection Agency (EPA) at 40 C.F.R. Part 247 that contain the highest percentage of recovered materials practicable, consistent with maintaining a satisfactory level of competition. |
| Article 29 | Rehabilitation Act of 1973
Recipients must comply with the requirements of Section 504 of the Rehabilitation Act of 1973, Pub. L. 93-112 (1973) (codified as amended at 29 U.S.C. § 794) which provides that no otherwise qualified handicapped individuals in the United States will, solely by reason of the handicap, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving federal financial assistance. |
| Article 30 | Reporting of Matters Related to Recipient Integrity and Performance
If the total value of any currently active grants, cooperative agreements, and procurement contracts from all federal awarding agencies exceeds \$10,000,000 for any period of time during the period of performance of this federal award, then the recipients must comply with the requirements set forth in the government-wide Award Term and Condition for Recipient Integrity and Performance Matters located at 2 C.F.R. Part 200, Appendix XII, the full text of which is incorporated here by reference in the award terms and conditions. |

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Article 31	Reporting Subawards and Executive Compensation Recipients are required to comply with the requirements set forth in the government-wide award term on Reporting Subawards and Executive Compensation located at 2 C.F.R. Part 170, Appendix A, the full text of which is incorporated here by reference in the award terms and conditions.
Article 32	SAFECOM Recipients receiving federal financial assistance awards made under programs that provide emergency communication equipment and its related activities must comply with the SAFECOM Guidance for Emergency Communication Grants, including provisions on technical standards that ensure and enhance interoperable communications.
Article 33	Terrorist Financing Recipients must comply with E.O. 13224 and U.S. laws that prohibit transactions with, and the provisions of resources and support to, individuals and organizations associated with terrorism. Recipients are legally responsible to ensure compliance with the Order and laws.
Article 34	Trafficking Victims Protection Act of 2000 (TVPA) Recipients must comply with the requirements of the government-wide financial assistance award term which implements Section 106(g) of the Trafficking Victims Protection Act of 2000 (TVPA), codified as amended at 22 U.S.C. § 7104. The award term is located at 2 C.F.R. § 175.15, the full text of which is incorporated here by reference.
Article 35	Universal Identifier and System of Award Management Recipients are required to comply with the requirements set forth in the government-wide financial assistance award term regarding the System for Award Management and Universal Identifier Requirements located at 2 C.F.R. Part 25, Appendix A, the full text of which is incorporated here by reference.
Article 36	USA PATRIOT Act of 2001 Recipients must comply with requirements of Section 817 of the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 (USA PATRIOT Act), Pub. L. No. 107-56, which amends 18 U.S.C. §§ 175-175c.
Article 37	Use of DHS Seal, Logo and Flags Recipients must obtain permission from their DHS FAO prior to using the DHS seal(s), logos, crests or reproductions of flags or likenesses of DHS agency officials, including use of the United States Coast Guard seal, logo, crests or reproductions of flags or likenesses of Coast Guard officials.

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Article 38 Whistleblower Protection Act

Recipients must comply with the statutory requirements for whistleblower protections (if applicable) at 10 U.S.C § 2409, 41 U.S.C. § 4712, and 10 U.S.C. § 2324, 41 U.S.C. §§ 4304 and 4310.

Article 39 Acceptance of Post Award Changes

In the event FEMA determines that changes are necessary to the award document after an award has been made, including changes to period of performance or terms and conditions, recipients will be notified of the changes in writing. Once notification has been made, any subsequent request for funds will indicate recipient acceptance of the changes to the award. Please call the FEMA/GMD Call Center at (866) 927-5646 or via e-mail to ASK-GMD@fema.dhs.gov if you have any questions.

Article 40 Prior Approval for Modification of Approved Budget

Before making any change to the FEMA approved budget for this award, you must request prior written approval from FEMA where required by 2 C.F.R. § 200.308. FEMA is also utilizing its discretion to impose an additional restriction under 2 C.F.R. § 200.308(f) regarding the transfer of funds among direct cost categories, programs, functions, or activities. Therefore, for awards with an approved budget where the federal share is greater than the simplified acquisition threshold (currently \$250,000), you may not transfer funds among direct cost categories, programs, functions, or activities without prior written approval from FEMA where the cumulative amount of such transfers exceeds or is expected to exceed ten percent (10%) of the total budget FEMA last approved. You must report any deviations from your FEMA approved budget in the first Federal Financial Report (SF-425) you submit following any budget deviation, regardless of whether the budget deviation requires prior written approval.

Article 41 Disposition of Equipment Acquired Under the Federal Award

When original or replacement equipment acquired under this award by the recipient or its subrecipients is no longer needed for the original project or program or for other activities currently or previously supported by a federal awarding agency, you must request instructions from FEMA to make proper disposition of the equipment pursuant to 2 C.F.R. § 200.313.

Article 42

Environmental Planning and Historic Preservation (EHP) Review

DHS/FEMA funded activities that may require an EHP review are subject to the FEMA Environmental Planning and Historic Preservation (EHP) review process. This review does not address all federal, state, and local requirements. Acceptance of federal funding requires recipient to comply with all federal, state, and local laws. DHS/FEMA is required to consider the potential impacts to natural and cultural resources of all projects funded by DHS/FEMA grant funds, through its EHP Review process, as mandated by the National Environmental Policy Act; National Historic Preservation Act of 1966, as amended; National Flood Insurance Program regulations; and, any other applicable laws and Executive Orders. To access the FEMA EHP screening form and instructions, go to the DHS/FEMA website at: <https://www.fema.gov/media-library/assets/documents/90195>. In order to initiate EHP review of your project(s), you must complete all relevant sections of this form and submit it to the Grant Programs Directorate (GPD) along with all other pertinent project information. The EHP review process must be completed before funds are released to carry out the proposed project; otherwise, DHS/FEMA may not be able to fund the project due to noncompliance with EHP laws, executive order, regulations, and policies. If ground disturbing activities occur during construction, applicant will monitor ground disturbance, and if any potential archeological resources are discovered, applicant will immediately cease work in that area and notify the pass-through entity, if applicable, and DHS/FEMA.

Article 43

Award Performance Goals

FEMA will measure the recipient's performance of the grant by comparing the number of supplies needed and requested in its application, the number of supplies acquired and delivered by the end of the period of performance, and the performance metric as stated in the NOFO to equip 100 percent of on-duty active members with Personal Protective Equipment. In order to measure performance, FEMA may request information throughout the period of performance. In its final performance report submitted at closeout, the recipient is required to report on the number of PPE purchased and the percentage of on-duty active members provided with PPE in compliance with the standards described in the NOFO.

Article 44 Performance Measures

BRIC aims to implement projects that reduce risks posed by natural hazards, and reduce future losses, by funding priority projects and activities. To achieve these goals, for FY20 BRIC is prioritizing the following types of projects: infrastructure projects, those that mitigate risk to lifelines, those that incorporate nature-based solutions, and projects proposed by applicants who adopt and enforce mandatory tribal-, territory-, or state-wide building codes based on the latest published editions of building codes. FEMA will measure the percent of dollars invested in these priorities, which will indicate that BRIC projects expect to meet the goal of reducing both risk posed by natural hazards and future losses. Based on the review of your application, FEMA has verified that the claimed costs are consistent with the stated program objective. By accepting this award, you certify that the total Federal award will measure the percent of dollars invested in these priorities and costs incurred by the recipient during FY 2020, in keeping with the program objective. BRIC is a new program, and as a result, FEMA will further assess the recipient's performance against the program objective during the award closeout process as outlined in Section F.3 of the FY 2020 BRIC Grant Notice of Funding Opportunity

Article 45 Changes to Title 2, Code of Federal Regulations

The references in the FY 2020 BRIC NOFO to regulations in 2 C.F.R. Parts 25, 170, and 200 have been superseded by recent revisions by the Office of Management and Budget (OMB). Most of the changes are effective November 12, 2020, with a couple effective August 13, 2020. See OMB, Guidance for Grants and Agreements, Final Guidance, 85 Fed. Reg. 49,506 (Aug. 13, 2020), <https://www.govinfo.gov/content/pkg/FR-2020-08-13/pdf/2020-17468.pdf>. The FY 2020 BRIC NOFO was published before these rules were revised, but since this award is being made after all revisions went into effect, the revised rules apply to this award. To the extent the requirements or regulatory citations are the same, the FY 2020 BRIC NOFO will continue to apply to this award. Conversely, to the extent there is a conflict between the FY 2020 BRIC NOFO and the revised 2 C.F.R. regulations, the language and citations of the revised 2 C.F.R. regulations will apply. Additional information on the changes to these regulations, including specific revisions regarding closeout and procurement under grants, can be found at <https://www.fema.gov/grants/guidance-tools/2-cfr-2020>.

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Agreement Articles

Article 46 Construction Project Requirements

1. Acceptance of Federal funding requires the Recipient and any Subrecipients to comply with all Federal, state and local laws prior to the start of any construction activity. Failure to obtain all appropriate Federal, state and local environmental permits and clearances may jeopardize Federal funding. 2. Any change to the approved scope of work will require re-evaluation by FEMA for Recipient and Subrecipient compliance with the National Environmental Policy Act and other laws and Executive Orders. 3. If ground disturbing activities occur during construction, the Recipient and any Subrecipients must ensure monitoring of ground disturbance and, if any potential archaeological resources are discovered, the Subrecipient will immediately cease construction in that area and notify the Recipient and FEMA.

Article 47 Copyright and Data Rights

The recipient is free to copyright any original work developed in the course of or under this Grant Agreement. The recipient acknowledges that DHS/FEMA reserves a royalty-free, non-exclusive and irrevocable license to reproduce, publish, or otherwise use, and authorize others to use, for Federal Government purposes: 1) the copyright in any work developed under an award or subaward; and 2) any rights of copyright to which a recipient or subrecipient purchases ownership with Federal support in a manner consistent with 2 C.F.R. § 200.315. The recipient acknowledges that DHS/FEMA has the right to obtain, reproduce, publish, or otherwise use the data produced under a Federal award and authorize others to so for Federal Government purposes in a manner consistent with 2 C.F.R. § 200.315.

Article 48 Remedies for Noncompliance and Enforcement

FEMA remedies for noncompliance will be processed as specified in 2 C.F.R. §§ 200.339-200.343 , and for acquisitions under this award for open space, FEMA enforcement remedies shall be processed as specified in 44 C.F.R. § 80.19(e), when the Terms and Conditions of this Grant Agreement are not met

Article 49 Insurance

In compliance with 42 U.S.C. § 4012a(a), when financial assistance is approved for acquisition or construction purposes within the Special Flood Hazard Area (SFHA), flood insurance shall be maintained for the life of the property regardless of transfer of ownership for any properties.

Article 50

HMA Duplication of Benefits

Hazard Mitigation Assistance (HMA) funds cannot duplicate or be duplicated by funds received by or available to Applicants, Subapplicants, or project or planning participants from other sources for the same cost or activity already paid for by another source of funding, such as benefits received from insurance claims, other assistance programs (including previous project or planning grants and subawards from HMA programs), legal awards, or other benefits associated with properties or damage that are or could be subject of litigation. Because the availability of other sources of mitigation grant or loan assistance is subject to available information and the means of each individual Applicant, HMA does not require proof that other assistance (not including insurance) has been sought. However, it is the responsibility of the property owner to report other benefits received, any applications for other assistance, the availability of insurance proceeds, or the potential for other compensation, such as from pending legal claims for damages, relating to the property. Amounts of other grants, loans or other assistance designated for the same purpose as HMA funds, if received, may be used to reduce the non-Federal cost-share. Where the property owner has an insurance policy covering any loss to the property which relates to the proposed HMA project, the means are available for receiving compensation for a loss or, in the case of increased cost of compliance (ICC), assistance toward certain mitigation projects. FEMA will generally require that the property owner file a claim prior to the receipt of HMA funds.

Article 51

Additional Non-Discrimination Requirements

Applicants/Recipients and Subapplicants/Subrecipients will ensure that no discrimination is practiced. Applicants must consider fairness, equity, and equal access when prioritizing and selecting project subapplications to submit with their application. Subapplicants and Subrecipients must ensure fairness, equity, and equal access when consulting and making offers of mitigation to property owners that benefit from mitigation activities.

Article 52

Changes in Scope of Work

Requests for changes to the scope of work (SOW) after award are permissible as long as they do not change the nature or total project cost of the activity, properties identified in the subapplication, the feasibility and effectiveness of the project, or the benefit cost ratio. Requests must be supported by adequate justification from the applicant in order to be processed. The justification is a description of the proposed change, a written explanation of the reason or reasons for the change; an outline of remaining funds available to support the change; and a full description of the work necessary to complete the activity. All approvals will be at FEMA's discretion, and there is no guarantee that SOW changes will be approved.

Article 53

Recoupment of Funds

FEMA will recoup mitigation planning grant funds for grants that do not meet the deliverable criteria of an adopted, FEMA-approved mitigation plan by the end of the performance period.

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Article 54 Recovery of Funds

The Recipient will process the recovery of assistance paid to Subrecipients processed through error, misrepresentation, or fraud or if funds are spent inappropriately. Recovered funds shall be submitted to FEMA as soon as the funds are collected, but no later than 90 days from the expiration date of the appropriate grant award agreement.

Article 55 Reporting of Fraud

All fraud identifications will be reported to the Department of Homeland Security Office of Inspector General (OIG). The Recipient agrees to cooperate with investigation conducted by the DHS OIG.

Article 56 Closeout and Final Reports

Because of recent changes to 2 C.F.R. Part 200 that went into effect for awards issued on or after November 12, 2020, the Recipient shall submit a final Federal Financial Report (FFR or SF-425) for project completion, as certified by the Recipient, final Program Performance Report (SF-PPR), and all other closeout documents 120 days after the end date of the performance period per the new 2 C.F.R. § 200.344.

Article 57 Record Retention

Records shall be retained for at least 3 years (except in certain rare circumstances) from the date the final Federal Financial Report for project completion as certified by the Recipient is submitted to FEMA in compliance with 2 C.F.R. Part 200 (specifically the new 2 C.F.R. § 200.334 effective Nov. 12, 2020) and Section 705 of the Stafford Act (42 U.S.C. § 5205).

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Article 58 Termination

FEMA may terminate a federal award in whole or in part for one of the following reasons. FEMA and the recipient must still comply with closeout requirements at 2 C.F.R. §§ 200.344-200.345 even if an award is terminated in whole or in part. To the extent that subawards are permitted under this NOFO, pass-through entities should refer to 2 C.F.R. § 200.340 for additional information on termination regarding subawards. Noncompliance: If a recipient fails to comply with the terms and conditions of a federal award, FEMA may terminate the award in whole or in part. If the noncompliance can be corrected, FEMA may first attempt to direct the recipient to correct the noncompliance. This may take the form of a Compliance Notification. If the noncompliance cannot be corrected or the recipient is non-responsive, FEMA may proceed with a Remedy Notification, which could impose a remedy for noncompliance per 2 C.F.R. § 200.339, including termination. Any action to terminate based on noncompliance will follow the requirements of 2 C.F.R. §§ 200.341-200.342 as well as the requirement of 2 C.F.R. § 200.340(c) to report in FAPIIS the recipient's material failure to comply with the award terms and conditions. With the Consent of the Recipient: FEMA may also terminate an award in whole or in part with the consent of the recipient, in which case the parties must agree upon the termination conditions, including the effective date, and in the case of partial termination, the portion to be terminated. Notification by the Recipient: The recipient may terminate the award, in whole or in part, by sending written notification to FEMA setting forth the reasons for such termination, the effective date, and in the case of partial termination, the portion to be terminated. In the case of partial termination, FEMA may determine that a partially terminated award will not accomplish the purpose of the federal award, so FEMA may terminate the award in its entirety. If that occurs, FEMA will follow the requirements of 2 C.F.R. §§ 200.341-200.342 in deciding to fully terminate the award.

Article 59 Standard Condition #1

Any change to the approved scope of work will require re-evaluation for compliance with NEPA and other Laws and Executive Orders.

Article 60 Standard Condition #2

This review does not address all federal, state and local requirements. Acceptance of federal funding requires recipient to comply with all federal, state and local laws. Failure to obtain all appropriate federal, state and local environmental permits and clearances may jeopardize federal funding.

Article 61 Standard Condition #3

If ground disturbing activities occur during construction, applicant will monitor ground disturbance and if any potential archeological resources are discovered, will immediately cease construction in that area and notify the State and FEMA.

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Article 62 Standard Condition #1

Any change to the approved scope of work will require re-evaluation for compliance with NEPA and other Laws and Executive Orders.

Article 63 Standard Condition #2

This review does not address all federal, state and local requirements. Acceptance of federal funding requires recipient to comply with all federal, state and local laws. Failure to obtain all appropriate federal, state and local environmental permits and clearances may jeopardize federal funding.

Article 64 Standard Condition #3

If ground disturbing activities occur during construction, applicant will monitor ground disturbance and if any potential archeological resources are discovered, will immediately cease construction in that area and notify the State and FEMA.

Project Scoping

Environmental Historic Preservation Memorandum

EMD-2020-BR-099-0004

The City of Cheyenne will use BRIC funds to select a consultant to evaluate pertinent data needed for hydraulic modeling of alternative conveyance pipes under the UPRR and, evaluation/design of a detention storage facility separated from the UPRR embankment. The City's consultant will conduct a BCA of each alternative hydraulic analysis of potential mitigation strategies/ projects ensuring the constructability and cost-effectiveness of the recommended strategy. FEMA Environmental Historic Preservation (EHP) has reviewed the project; although there is no information necessary for EHP review at this time since the grant is for project scoping activities only, EHP recommends that the City consider the National Environmental Policy Act applicable laws and regulations when studying any future project actions. It is recommended that the City start EHP existing conditions reviews and analysis once a project area is defined.

This project has potential to have eligible National Register of Historic Places (NRHP) sites within the project boundaries. Ground disturbing activities may trigger a Section 106 of the National Historic Preservation Act consultation with the Wyoming State Historic Preservation Office. Work within a jurisdictional Waters of the U.S. will require a Section 404 permit under the Clean Water Act from the US Army Corps of Engineers and may require a floodplain development permit from a local floodplain administrator. Please note that FEMA began partial implementation of Federal Flood Risk Management Standard (FFRMS) with FFRMS Interim Policy FP-206-21-003 for Hazard Mitigation Assistance Programs. For non-critical actions involving structure elevation, dry floodproofing, and mitigation reconstruction in the Special Flood Hazard Area, the policy requires that the minimum flood elevation be the base flood elevation plus 2 feet of freeboard (or a higher applicable standard), unless doing so would cause the project to be unable to meet cost-effectiveness requirements. Additional policies and guidance's will be forthcoming, and the project team should consider FFRMS in their scoping activities, as applicable.

Other environmental laws and regulations that may be applicable to future project planning efforts include: Endangered Species Act, Executive Order 11990 (Wetlands), Executive Order 11988 (Floodplain Management) and Executive Order 12898: Environmental Justice for Low Income and Minority Populations. Upon award of the BRIC project scoping application FEMA EHP staff is available to provide guidance and support on NEPA and environmental historic preservation compliance, if requested. Once the project boundaries are defined, FEMA EHP recommends a cultural resource and biological resources reports to help the City identify any future EHP concerns and/or consultations. These studies can be completed as part of the project scoping application scope of work and can streamline the EHP review once the project advances. This memorandum and FEMA EHP approval of the requested project scoping funds does not constitute authorization of any construction activities associated with proposed future mitigation actions.

Attachment D

The Basics for Quarterly Reports

Required for all Federal Grants
OMB Circulars, 44 CFR, Guidance Documents

Required for all Grant recipients (grantee and sub-grantee)

Due 30 days after the end of each Federal Fiscal Quarter

Quarterly Reports are the prescribed management tool for Federal grants.

Essential Information for Programmatic Quarterly Reports

1. Describe the work elements that were completed this quarter referencing back to the approved work schedule and/or milestones.
Example: Under work schedule item one Appraisals:
Appraisals on five of the seven proposed home acquisitions have been completed. The appraiser currently has appraisals scheduled for the additional properties and should be complete by the end of the month. Appraisals have been completed on 315 Elm Street, 317 Elm Street, 204 Pine Street, 206 Pine Street and 210 Pine Street. We are currently two weeks behind our proposed work schedule due to a limited number of state certified appraisers, but believe we can still successfully complete the project within the approved performance period.
2. Following work performed during this quarter, what percentage of the project has been completed?
Example: We have completed Milestones 1. Retrofit Design, 2. Advertising and Bids, and 3. Awarding of Contract and 4. Construction Mobilization has commenced. This puts us at 25% of completion of the overall project. We have expended 50% of the budget, however, this is in line with the cost associated with the design and original budget request.
3. Provide an explanation of the environmental conditions per the Catex or Fonsi document that were met during the quarter; attach copies of permits, if applicable.
Examples: This project has the following Environmental conditions:
Coordination with SHPO if any significant finding during construction
No significant findings to date
Construction is limited during the mating season of the Flying Pork Pigeon and coordinate is required with the State Game Fish and Parks to ensure that none of this species are in the project area to ensure this endangered species is not *impacted* by the construction.

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State Game, Fish and Parks has determine no Flying Pork Pigeons are nesting in the area. They have provided a letter allowing construction to commence during the mating season.

A Floodplain permit is required before construction in the floodplain. The Concrete County Floodplain Manager issued a permit for this project on 2/31/08

4. Is the project on schedule? (Or Delayed, Cancelled, or Completed-if so, give date)
Examples: Due to the early and continuing weather conditions frozen ground is delaying demolition on the following structures:
315 Elm Street, 561 Notdunyet Ave.
We will be unable to meet the 90 day schedule for demolition.

Weather conditions have been favorable this year and we were able to complete the earthwork and paving sooner than anticipated. This will allow us to complete the project two weeks ahead of schedule.
5. Identify potential delays with timeframes, if anticipated.
Example: Local Truckers Union 360 has gone on strike this will cause a delay in the delivery of the concrete culvert currently scheduled to be installed at the Fourth Street crossing. Unfortunately at this time there is no estimate how long this strike will continue. We will continue with other elements of the project.
6. Provide a brief description of next quarters projected work elements.
Example: Construction is on schedule and should be completed this next quarter. Final inspection is project for March.
7. Are the costs on unchanged? (Or is there a cost over run or under run expected?)
Examples: Due to increased fuel costs we are anticipating a 5% increase in construction costs.

The successful bidder for this project is under the original estimate by \$2500. At this time we would like to retain these funds in the budget until significant progress is made.